# SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS

*OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30*

| 1. REQUISITION NUMBER | PAGE 1 OF 52 |
|---|---|
| 0011750232 | |

| 2. CONTRACT NO. | 3. AWARD/EFFECTIVE DATE | 4. ORDER NUMBER | 5. SOLICITATION NUMBER | 6. SOLICITATION ISSUE DATE |
|---|---|---|---|---|
| W912L822C0002 | 11-May-2022 | | W912L822R0002 | 10-Feb-2022 |

| 7. FOR SOLICITATION INFORMATION CALL: | a. NAME | b. TELEPHONE NUMBER *(No Collect Calls)* | 8. OFFER DUE DATE/LOCAL TIME |
|---|---|---|---|
| | ERICA OLDAKER | 304-473-5203 | 12:00 PM 10 Mar 2022 |

**9. ISSUED BY** CODE W912L8

USPFO WV PURCHASING & CONTRACTING
50 ARMORY ROAD
BUCKHANNON WV 26201-8818

TEL:
FAX:

**10. THIS ACQUISITION IS**

- [ ] UNRESTRICTED OR [X] SET ASIDE: 100 % FOR:
- [ ] SMALL BUSINESS
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
- [X] HUBZONE SMALL BUSINESS
- [ ] EDWOSB
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- [ ] 8(A)

NAICS: 541611

SIZE STANDARD: $16,500,000

**11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED**

- [ ] SEE SCHEDULE

**12. DISCOUNT TERMS**

Net 30 Days

- [ ] 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)

13b. RATING

**14. METHOD OF SOLICITATION**

- [ ] RFQ
- [ ] IFB
- [X] RFP

**15. DELIVER TO** CODE W90BY5

AMEDD
WVARNG MED DET
100 MILITARY DRIVE
CHARLESTON WV 25311

**16. ADMINISTERED BY** CODE

**SEE ITEM 9**

**17a. CONTRACTOR/ OFFEROR** CODE 47VZ6 FACILITY CODE

TRIDANT SOLUTIONS, INC.
TRIDANT SOLUTIONS
ANNETTE PALAZUELOS
453 N LAKE AVE
PASADENA CA 91101-1215
TELEPHONE NO. 626-614-9581

**18a. PAYMENT WILL BE MADE BY** CODE HQ0670

USPFO FOR WV (ACCOUNTS PAYABLE)
50 ARMORY ROAD
ATTN: VICKIE ROHR
BUCKHANNON WV 26201-8818

- [ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a. UNLESS BLOCK BELOW IS CHECKED [X] SEE ADDENDUM

| 19. ITEM NO. | 20. SCHEDULE OF SUPPLIES/ SERVICES | 21. QUANTITY | 22. UNIT | 23. UNIT PRICE | 24. AMOUNT |
|---|---|---|---|---|---|
| | **SEE SCHEDULE** | | | | |

**25. ACCOUNTING AND APPROPRIATION DATA**

**See Schedule**

**26. TOTAL AWARD AMOUNT (For Govt. Use Only)**

**$100,645.19**

- [ ] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1. 52.212-4. FAR 52.212-3. 52.212-5 ARE ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED
- [ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[X] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

REF: Tridant Solutions Proposal

[ ] 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: SEE SCHEDULE

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

matthew D. Corcoran

| 30b. NAME AND TITLE OF SIGNER *(TYPE OR PRINT)* | 30c. DATE SIGNED | 31b. NAME OF CONTRACTING OFFICER *(TYPE OR PRINT)* | 31c. DATE SIGNED |
|---|---|---|---|
| | | MATT CORCORAN / CONTRACTING OFFICER<br>TEL: 304-473-5016<br>EMAIL: matthew.d.corcoran.mil@army.mil | 11-May-2022 |

| SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS (CONTINUED) | | PAGE 2 OF 52 |
|---|---|---|

| 19. ITEM NO. | 20. SCHEDULE OF SUPPLIES/ SERVICES | 21. QUANTITY | 22. UNIT | 23. UNIT PRICE | 24. AMOUNT |
|---|---|---|---|---|---|
| | **SEE SCHEDULE** | | | | |

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

| 32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE | 32c. DATE | 32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE |
|---|---|---|
| | | |

| 32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE | 32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE |
|---|---|
| | 32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE |

| 33. SHIP NUMBER ☐ PARTIAL ☐ FINAL | 34. VOUCHER NUMBER | 35. AMOUNT VERIFIED CORRECT FOR | 36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL | 37. CHECK NUMBER |
|---|---|---|---|---|
| | | | | |

| 38. S/R ACCOUNT NUMBER | 39. S/R VOUCHER NUMBER | 40. PAID BY |
|---|---|---|
| | | |

| 41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT | | 42a. RECEIVED BY *(Print)* | |
|---|---|---|---|
| 41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER | 41c. DATE | 42b. RECEIVED AT *(Location)* | |
| | | 42c. DATE REC'D *(YY/MM/DD)* | 42d. TOTAL CONTAINERS |

Section SF 1449 - CONTINUATION SHEET

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0001 | | 1 | Job | $95,645.19 | $95,645.19 |

Base Year Care Coordinators Labor
FFP
COR is Nathan Douglas (304) 352-3607
Contracting POC: Erica Oldaker (304) 473-5265
Period of Performance 12 May 2022 - 11 May 2023
Wage Determination WV2015-4347 REV 17-12160
FOB: Destination
PURCHASE REQUEST NUMBER: 0011750232
PSC CD: Q802

NET AMT $95,645.19

ACRN AA $95,645.19
CIN: GFEBS001175023200001

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 0002 | | 1 | Job | $5,000.00 | $5,000.00 |

Base Year Travel
FFP
COR is Nathan Douglas (304) 352-3607
Contracting POC: Erica Oldaker (304) 473-5265
Period of Performance: 12 May 2022 - 11 May 2023
FOB: Destination
PURCHASE REQUEST NUMBER: 0011750232
PSC CD: Q802

NET AMT $5,000.00

ACRN AA $5,000.00
CIN: GFEBS001175023200002

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 1001 | | 1 | Job | $96,396.36 | $96,396.36 |
| OPTION | OY1 Care Coordinators Labor<br>FFP<br>COR is Nathan Douglas (304) 352-3607<br>Contracting POC: Erica Oldaker (304) 473-5265<br>Estimated Period of Performance 12 May 2023 - 11 May 2024<br>Wage Determination WV2015-4347 REV 17-12160<br>FOB: Destination<br>PSC CD: Q802 | | | | |
| | | | | NET AMT | $96,396.36 |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 1002 | | 1 | Job | $5,000.00 | $5,000.00 |
| OPTION | OY1 Travel<br>FFP<br>COR is Nathan Douglas (304) 352-3607<br>Contracting POC: Erica Oldaker (304) 473-5265<br>Period of Performance: 12 May 2023 - 11 May 2024<br>FOB: Destination<br>PSC CD: Q802 | | | | |
| | | | | NET AMT | $5,000.00 |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 2001 | | 1 | Job | $97,150.19 | $97,150.19 |
| OPTION | OY2 Care Coordinators Labor<br>FFP<br>COR is Nathan Douglas (304) 352-3607<br>Contracting POC: Erica Oldaker (304) 473-5265<br>Estimated Period of Performance 12 May 2024 - 11 May 2025<br>Wage Determination WV2015-4347 REV 17-12160<br>FOB: Destination<br>PSC CD: Q802 | | | | |
| | | | | NET AMT | $97,150.19 |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 2002 | | 1 | Job | $5,000.00 | $5,000.00 |
| OPTION | OY2 Travel<br>FFP<br>COR is Nathan Douglas (304) 352-3607<br>Contracting POC: Erica Oldaker (304) 473-5265<br>Period of Performance: 12 May 2024 - 11 May 2025<br>FOB: Destination<br>PSC CD: Q802 | | | | |
| | | | | NET AMT | $5,000.00 |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 3001 | | 1 | Job | $97,906.63 | $97,906.63 |
| OPTION | OY3 Care Coordinators Labor<br>FFP<br>COR is Nathan Douglas (304) 352-3607<br>Contracting POC: Erica Oldaker (304) 473-5265<br>Estimated Period of Performance 12 May 2025 - 11 May 2026<br>Wage Determination WV2015-4347 REV 17-12160<br>FOB: Destination<br>PSC CD: Q802 | | | | |
| | | | | NET AMT | $97,906.63 |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 3002 | | 1 | Job | $5,000.00 | $5,000.00 |
| OPTION | OY3 Travel<br>FFP<br>COR is Nathan Douglas (304) 352-3607<br>Contracting POC: Erica Oldaker (304) 473-5265<br>Period of Performance: 12 May 2025 - 11 May 2026<br>FOB: Destination<br>PSC CD: Q802 | | | | |
| | | | | NET AMT | $5,000.00 |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 4001 | | 1 | Job | $98,665.72 | $98,665.72 |
| OPTION | OY4 Care Coordinators Labor<br>FFP<br>COR is Nathan Douglas (304) 352-3607<br>Contracting POC: Erica Oldaker (304) 473-5265<br>Estimated Period of Performance 12 May 2026 - 11 May 2027<br>Wage Determination WV2015-4347 REV 17-12160<br>FOB: Destination<br>PSC CD: Q802 | | | | |
| | | | | NET AMT | $98,665.72 |

| ITEM NO | SUPPLIES/SERVICES | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---|---|---|---|---|---|
| 4002 | | 1 | Job | $5,000.00 | $5,000.00 |
| OPTION | OY4 Travel<br>FFP<br>COR is Nathan Douglas (304) 352-3607<br>Contracting POC: Erica Oldaker (304) 473-5265<br>Period of Performance: 12 May 2026 - 11 May 2027<br>FOB: Destination<br>PSC CD: Q802 | | | | |
| | | | | NET AMT | $5,000.00 |

## INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

| CLIN | INSPECT AT | INSPECT BY | ACCEPT AT | ACCEPT BY |
|---|---|---|---|---|
| 0001 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |

| | | | | |
|---|---|---|---|---|
| 0002 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |
| 1001 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |
| 1002 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |
| 2001 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |
| 2002 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |
| 3001 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |
| 3002 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |
| 4001 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |
| 4002 | N/A | N/A | AMEDD<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311 | Government |

## DELIVERY INFORMATION

| CLIN | DELIVERY DATE | QUANTITY | SHIP TO ADDRESS | DODAAC / CAGE |
|---|---|---|---|---|
| 0001 | POP 12-MAY-2022 TO 11-MAY-2023 | N/A | AMEDD<br>WVARNG MED DET<br>100 MILITARY DRIVE<br>CHARLESTON WV 25311<br>304-561-6465<br>FOB: Destination | W90BY5 |
| 0002 | POP 12-MAY-2022 TO 11-MAY-2023 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W90BY5 |
| 1001 | POP 12-MAY-2023 TO 11-MAY-2024 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W90BY5 |
| 1002 | POP 12-MAY-2023 TO 11-MAY-2024 | N/A | (SAME AS PREVIOUS LOCATION)<br>FOB: Destination | W90BY5 |

| | | | | |
|---|---|---|---|---|
| 2001 | POP 12-MAY-2024 TO 11-MAY-2025 | N/A | (SAME AS PREVIOUS LOCATION) FOB: Destination | W90BY5 |
| 2002 | POP 12-MAY-2024 TO 11-MAY-2025 | N/A | (SAME AS PREVIOUS LOCATION) FOB: Destination | W90BY5 |
| 3001 | POP 12-MAY-2025 TO 11-MAY-2026 | N/A | (SAME AS PREVIOUS LOCATION) FOB: Destination | W90BY5 |
| 3002 | POP 12-MAY-2025 TO 11-MAY-2026 | N/A | (SAME AS PREVIOUS LOCATION) FOB: Destination | W90BY5 |
| 4001 | POP 12-MAY-2026 TO 11-MAY-2027 | N/A | (SAME AS PREVIOUS LOCATION) FOB: Destination | W90BY5 |
| 4002 | POP 12-MAY-2026 TO 11-MAY-2027 | N/A | (SAME AS PREVIOUS LOCATION) FOB: Destination | W90BY5 |

## ACCOUNTING AND APPROPRIATION DATA

AA: 021202220222065000011313325600401236396100.0163021001
COST CODE: A18XA
AMOUNT: $100,645.19

| ACRN | CLIN/SLIN | CIN | AMOUNT |
|---|---|---|---|
| AA | 0001 | GFEBS001175023200001 | $95,645.19 |
| | 0002 | GFEBS001175023200002 | $5,000.00 |

## CLAUSES INCORPORATED BY REFERENCE

| | | |
|---|---|---|
| 52.202-1 | Definitions | JUN 2020 |
| 52.203-3 | Gratuities | APR 1984 |
| 52.203-6 | Restrictions On Subcontractor Sales To The Government | JUN 2020 |
| 52.203-12 | Limitation On Payments To Influence Certain Federal Transactions | JUN 2020 |
| 52.204-9 | Personal Identity Verification of Contractor Personnel | JAN 2011 |
| 52.204-13 | System for Award Management Maintenance | OCT 2018 |
| 52.204-19 | Incorporation by Reference of Representations and Certifications. | DEC 2014 |
| 52.204-21 | Basic Safeguarding of Covered Contractor Information Systems | DEC 2021 |
| 52.212-4 | Contract Terms and Conditions--Commercial Products and Commercial Services | DEC 2021 |
| 52.219-17 | Section 8(a) Award | OCT 2019 |
| 52.224-1 | Privacy Act Notification | APR 1984 |
| 52.224-2 | Privacy Act | APR 1984 |
| 52.232-18 | Availability Of Funds | APR 1984 |

| | | |
|---|---|---|
| 52.232-39 | Unenforceability of Unauthorized Obligations | JUN 2013 |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors | DEC 2021 |
| 52.252-4 | Alterations in Contract | APR 1984 |
| 252.201-7000 | Contracting Officer's Representative | DEC 1991 |
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials | SEP 2011 |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights | SEP 2013 |
| 252.203-7003 | Agency Office of the Inspector General | AUG 2019 |
| 252.204-7003 | Control Of Government Personnel Work Product | APR 1992 |
| 252.204-7004 | Antiterrorism Awareness Training for Contractors. | FEB 2019 |
| 252.204-7006 | Billing Instructions | OCT 2005 |
| 252.204-7009 | Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information | OCT 2016 |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting | DEC 2019 |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services | JAN 2021 |
| 252.204-7021 | Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirement | NOV 2020 |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports | DEC 2018 |
| 252.232-7010 | Levies on Contract Payments | DEC 2006 |
| 252.232-7017 | Accelerating Payments to Small Business Subcontractors--Prohibition on Fees and Consideration | APR 2020 |
| 252.239-7001 | Information Assurance Contractor Training and Certification | JAN 2008 |
| 252.243-7001 | Pricing Of Contract Modifications | DEC 1991 |

CLAUSES INCORPORATED BY FULL TEXT

52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021)

(a) Definitions. As used in this clause--

Agent means any individual, including a director, an officer, an employee, or an independent Contractor, authorized to act on behalf of the organization.

Full cooperation—

(1) Means disclosure to the Government of the information sufficient for law enforcement to identify the nature and extent of the offense and the individuals responsible for the conduct. It includes providing timely and complete response to Government auditors' and investigators' request for documents and access to employees with information;

(2) Does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not require--

(i) A Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine; or

(ii) Any officer, director, owner, or employee of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; and

(3) Does not restrict a Contractor from--

(i) Conducting an internal investigation; or

(ii) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

Subcontract means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

Subcontractor means any supplier, distributor, vendor, or firm that furnished supplies or services to or for a prime contractor or another subcontractor.

United States means the 50 States, the District of Columbia, and outlying areas.

(b) Code of business ethics and conduct. (1) Within 30 days after contract award, unless the Contracting Officer establishes a longer time period, the Contractor shall--

(i) Have a written code of business ethics and conduct;

(ii) Make a copy of the code available to each employee engaged in performance of the contract.

(2) The Contractor shall--

(i) Exercise due diligence to prevent and detect criminal conduct; and

(ii) Otherwise promote an organizational culture that encourages ethical conduct and a commitment to compliance with the law.

(3)(i) The Contractor shall timely disclose, in writing, to the agency Office of the Inspector General (OIG), with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed--

(A) A violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code; or

(B) A violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(ii) The Government, to the extent permitted by law and regulation, will safeguard and treat information obtained pursuant to the Contractor's disclosure as confidential where the information has been marked “confidential” or “proprietary” by the company. To the extent permitted by law and regulation, such information will not be released by the Government to the public pursuant to a Freedom of Information Act request, 5 U.S.C. Section 552, without prior notification to the Contractor. The Government may transfer documents provided by the Contractor to any department or agency within the Executive Branch if the information relates to matters within the organization's jurisdiction.

(iii) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the Contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract.

(c) Business ethics awareness and compliance program and internal control system. This paragraph (c) does not apply if the Contractor has represented itself as a small business concern pursuant to the award of this contract or if this contract is for the acquisition of a commercial product or commercial service as defined at FAR 2.101. The Contractor shall establish the following within 90 days after contract award, unless the Contracting Officer establishes a longer time period:

(1) An ongoing business ethics awareness and compliance program.

(i) This program shall include reasonable steps to communicate periodically and in a practical manner the Contractor's standards and procedures and other aspects of the Contractor's business ethics awareness and compliance program and internal control system, by conducting effective training programs and otherwise disseminating information appropriate to an individual's respective roles and responsibilities.

(ii) The training conducted under this program shall be provided to the Contractor's principals and employees, and as appropriate, the Contractor's agents and subcontractors.

(2) An internal control system.

(i) The Contractor's internal control system shall--

(A) Establish standards and procedures to facilitate timely discovery of improper conduct in connection with Government contracts; and

(B) Ensure corrective measures are promptly instituted and carried out.

(ii) At a minimum, the Contractor's internal control system shall provide for the following:

(A) Assignment of responsibility at a sufficiently high level and adequate resources to ensure effectiveness of the business ethics awareness and compliance program and internal control system.

(B) Reasonable efforts not to include an individual as a principal, whom due diligence would have exposed as having engaged in conduct that is in conflict with the Contractor's code of business ethics and conduct.

(C) Periodic reviews of company business practices, procedures, policies, and internal controls for compliance with the Contractor's code of business ethics and conduct and the special requirements of Government contracting, including--

(1) Monitoring and auditing to detect criminal conduct;

(2) Periodic evaluation of the effectiveness of the business ethics awareness and compliance program and internal control system, especially if criminal conduct has been detected; and

(3) Periodic assessment of the risk of criminal conduct, with appropriate steps to design, implement, or modify the business ethics awareness and compliance program and the internal control system as necessary to reduce the risk of criminal conduct identified through this process.

(D) An internal reporting mechanism, such as a hotline, which allows for anonymity or confidentiality, by which employees may report suspected instances of improper conduct, and instructions that encourage employees to make such reports.

(E) Disciplinary action for improper conduct or for failing to take reasonable steps to prevent or detect improper conduct.

(F) Timely disclosure, in writing, to the agency OIG, with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of any Government contract performed by the Contractor or a

subcontractor thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 U.S.C. or a violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(1) If a violation relates to more than one Government contract, the Contractor may make the disclosure to the agency OIG and Contracting Officer responsible for the largest dollar value contract impacted by the violation.

(2) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract, and the respective agencies' contracting officers.

(3) The disclosure requirement for an individual contract continues until at least 3 years after final payment on the contract.

(4) The Government will safeguard such disclosures in accordance with paragraph (b)(3)(ii) of this clause.

(G) Full cooperation with any Government agencies responsible for audits, investigations, or corrective actions.

(d) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts that exceed the threshold specified in FAR 3.1004(a) on the date of subcontract award and a performance period of more than 120 days.

(2) In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(End of clause)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2022)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (NOV 2021) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(6) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

___ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 2402).

___ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

XX (4) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (5) [Reserved]

___ (6) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

____ (7) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

XX (8) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (NOV 2021) (31 U.S.C. 6101 note).

XX (9) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

____ (10) [Reserved]

____ (11) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (SEP 2021) (15 U.S.C. 657a).

____ (12) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (SEP 2021) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

____ (13) [Reserved]

____ (14)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-6.

____ (15)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

____ (ii) Alternate I (MAR 2020) of 52.219-7.

XX (16) 52.219-8, Utilization of Small Business Concerns (OCT 2018) (15 U.S.C. 637(d)(2) and (3)).

____ (17)(i) 52.219-9, Small Business Subcontracting Plan (NOV 2021) (15 U.S.C. 637(d)(4)).

____ (ii) Alternate I (NOV 2016) of 52.219-9.

____ (iii) Alternate II (NOV 2016) of 52.219-9.

____ (iv) Alternate III (JUN 2020) of 52.219-9.

____ (v) Alternate IV (SEP 2021) of 52.219-9.

XX (18) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

____ (ii) Alternate I (MAR 2020) of 52.219-13.

XX (19) 52.219-14, Limitations on Subcontracting (SEP 2021) (15 U.S.C. 657s).

____ (20) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

____ (21) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (SEP 2021) (15 U.S.C. 657f).

XX (22) (i) 52.219-28, Post-Award Small Business Program Rerepresentation (SEP 2021) (15 U.S.C. 632(a)(2)).

____ (ii) Alternate I (MAR 2020) of 52.219-28.

____ (23) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (SEP 2021) (15 U.S.C. 637(m)).

____ (24) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (SEP 2021) (15 U.S.C. 637(m)).

____ (25) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

____ (26) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 657s).

XX (27) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

_____(28) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (JAN 2022) (E.O. 13126).

XX (29) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

XX (30)(i) 52.222-26, Equal Opportunity (SEPT 2016) (E.O. 11246).

____ (ii) Alternate I (FEB 1999) of 52.222-26.

XX (31)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

____ (ii) Alternate I (JUL 2014) of 52.222-35.

XX (32)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

____ (ii) Alternate I (JUL 2014) of 52.222-36.

XX (33) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

____ (34) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

XX (35)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

____ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

XX (36) 52.222-54, Employment Eligibility Verification (NOV 2021). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

____ (37)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (38) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (JUN 2016) (E.O. 13693).

____ (39) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (JUN 2016) (E.O. 13693).

_____ (40) (i) 52.223-13, Acquisition of EPEAT® Registered Imaging Equipment (JUN 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (OCT 2015) of 52.223-13.

_____ (41)(i) 52.223-14, Acquisition of EPEAT® Registered Televisions (JUN 2014) (E.O.s 13423 and 13514).

_____ (ii) Alternate I (JUN 2014) of 52.223-14.

____ (42) 52.223-15, Energy Efficiency in Energy-Consuming Products (MAY 2020) (42 U.S.C. 8259b).

____ (43)(i) 52.223-16, Acquisition of EPEAT®-Registered Personal Computer Products (OCT 2015) (E.O.s 13423 and 13514).

____ (ii) Alternate I (JUN 2014) of 52.223-16.

XX (44) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020) (E.O. 13513).

____ (45) 52.223-20, Aerosols (JUN 2016) (E.O. 13693).

____ (46) 52.223-21, Foams (JUN 2016) (E.O. 13693).

____ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

____ (ii) Alternate I (JAN 2017) of 52.224-3.

____ (48) 52.225-1, Buy American--Supplies (NOV 2021) (41 U.S.C. chapter 83).

____ (49) (i) 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act (NOV 2021) (41 U.S.C. chapter 83, 19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

____ (ii) Alternate I (JAN 2021) of 52.225-3.

____ (iii) Alternate II (JAN 2021) of 52.225-3.

____ (iv) Alternate III (JAN 2021) of 52.225-3.

____ (50) 52.225-5, Trade Agreements (OCT 2019) 19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

XX (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150

____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

____ (55) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

____ (56) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

____ (57) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

XX (58) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).

____ (59) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

____ (60) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

____ (61) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

____ (62) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

____ (63)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

____ (ii) Alternate I (APR 2003) of 52.247-64.

____ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

XX (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

XX (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

XX (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

_____ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67).

XX (7) 52.222-55, Minimum Wages Under Executive Order 13658 (JAN 2022) (E.O. 13658).

XX (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

_____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1)in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (NOV 2021) (Section 1634 of Pub. L. 115-91).

(iv) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(v) 52.219-8, Utilization of Small Business Concerns (Oct 2018) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(vi) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(vii) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

(viii) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xii) 52.222-41, Service Contract Labor Standards (Aug 2018), (41 U.S.C. chapter 67).

(xiii) _____ (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (B) Alternate I (March 2, 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67.)

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67)

(xvi) 52.222-54, Employment Eligibility Verification (NOV 2021) (E. O. 12989).

(xvii) 52.222-55, Minimum Wages Under Executive Order 13658 (JAN 2022) (E.O. 13658).

(xviii) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2017) (E.O. 13706).

(xix) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days before the contract expires.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days before the contract expires; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.
(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/content.regulations

(End of clause)

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (DEC 2018)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):
**2 in 1 – only for services**

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

_____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

_____

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial item financing, submit a commercial item financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

| *Field Name in WAWF* | *Data to be entered in WAWF* |
|---|---|
| Pay Official DoDAAC | Block # 18a |
| Issue By DoDAAC | Block # 9 |
| Admin DoDAAC** | Block # 9 |
| Inspect By DoDAAC | Block # 15 |
| Ship To Code | Block # 15 |
| Ship From Code | ____ |
| Mark For Code | ____ |
| Service Approver (DoDAAC) | ____ |
| Service Acceptor (DoDAAC) | W90BY5 |
| Accept at Other DoDAAC | ____ |
| LPO DoDAAC | ____ |
| DCAA Auditor DoDAAC | ____ |
| Other DoDAAC(s) | ____ |

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

ng.wv.wvarng.list.vendor-pay@mail.mil

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

_____

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## Exhibit/Attachment Table of Contents

| DOCUMENT TYPE | DESCRIPTION | PAGES | DATE |
|---|---|---|---|
| Attachment 1 | PDS Validation 20220511141828 | | |
| Attachment 2 | PDS Validation 20220511140733 | | |
| Attachment 3 | PDS Validation 20220511143302 | | |
| Attachment 4 | PDS Validation 20220511150636 | | |
| Attachment 5 | PDS Validation 20220511145603 | | |
| Attachment 6 | PDS Validation 20220511152218 | | |
| Attachment 7 | PDS Validation 20220511151944 | | |

PERFORMANCE WORK STATEMENT

# PERFORMANCE WORK STATEMENT (PWS)

## FOR

## Care Coordinator Services

### 1.0 General:

1.1 Scope: The contractor shall provide all personnel, equipment, tools, materials, supervision, and quality control necessary, except as specified in Paragraph 3.0 as Government Furnished, to perform Care Coordinator Services**,** as defined in this PWS.

1.2 Background: Care Coordinators ensure that every West Virginia Army National Guard (WVARNG) soldier is medically ready to execute his/her state and federal mission. This is achieved by identifying those Soldiers not meeting medical deployment standards, tracking their care through deployability determination or medical separation from the force, and maintaining accurate documentation throughout the process. Care Coordinators assist Case Management staff to ensure medical records are obtained, loaded into electronic medical records and hardcopy files.

1.3 Period of Performance (PoP): The Period of Performance shall be 1 Base Year of 12 months and 4, 12-month option years.

1.4 General Information:

1.4.1 Place and Performance of Services: The contractor shall provide services between the hours of 0730 – 1630 on Monday through Friday**,** except on recognized US holidays or when the Government facility/installation is closed due to local or national emergencies, administrative closings, or similar Government-directed facility/installation closings. Performance shall be at 100 Military Drive, South Charleston, WV 25309. The contractor shall at all times maintain an adequate work force for the uninterrupted performance of all tasks defined within this PWS when the Government facility/installation is not closed for the above reasons. When hiring personnel, the contractor shall keep in mind that the stability and continuity of the work force are essential. Teleworking is authorized.

1.4.1.1 Telework: The Government will permit the contractor to telework in support of this requirement. In furtherance of Continuity of Operations Planning (COOP), a telework program may be enacted to ensure that the Government's mission-critical operations stay operational during times of national emergency or incidents of national significance. Telework shall be at no additional cost to the Government.

1.4.1.2 Unscheduled gate closures by the Security Police may occur at any time causing all personnel entering or exiting a closed installation to experience a delay. This cannot be predicted or prevented. Contractors are not compensated for unexpected closures or delays. Vehicles operated by contractor personnel are subject to search pursuant to applicable regulations. Any moving violation of any applicable motor vehicle regulation may result in the termination of the contractor employee’s installation driving privileges.

1.4.1.3 The contractor’s employees shall become familiar with and obey the regulations of the installation; including fire, traffic, safety and security regulations while on the installation. Contractor employees should only enter restricted areas when required to do so and only upon prior approval. All contractor employees shall carry proper

identification with them at all times, and shall be subject to such checks as may be deemed necessary. The contractor shall ensure compliance with all regulations and orders of the installation, which may affect performance. The Government reserves the right to direct the removal of an employee from Government property or revoke access to Government systems for misconduct, security reasons, or any overt evidence of communicable disease. Removal of contractor employees for reasons stated above does not relieve the Contractor from responsibility for total performance of this contract.

1.4.2 Recognized Holidays: The following are recognized United States (US) holidays. The contractor shall not perform services on these days:

1.4.2.1 New Year's Day: January 1st
1.4.2.2 Martin Luther King, Jr.'s Birthday
1.4.2.3 President's Day
1.4.2.4 Memorial Day
1.4.2.5 Juneteenth National Independence Day: June 19th
1.4.2.6 Independence Day: July 4th
1.4.2.7 Labor Day
1.4.2.8 Columbus Day
1.4.2.9 Veteran's Day: November 11th
1.4.2.10 Thanksgiving Day
1.4.2.11 Christmas Day: December 25th

1.4.3 Quality Control (QC): The contractor shall develop and maintain an effective QC Plan (QCP) to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's QCP is the means by which it assures itself that its work complies with the requirements of the contract. As a minimum, the contractor shall develop QC procedures that address the areas identified in Technical Exhibit 1, Performance Requirements Summary (PRS). A final QCP shall be submitted to the Contracting Officer Representative (COR) NLT 10 days after contract award. After acceptance of the QCP, the contractor shall obtain the Contracting Officer's (KO's) acceptance in writing of any proposed changes to its QCP.

1.4.4 Quality Assurance (QA): The Government will evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government will do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and acceptable quality level(s) or defect rate(s).

1.4.5 Installation Access and Security Requirements. The contractor shall comply with all applicable installation/facility access and local security policies and procedures, which may be obtained from the COR. The contractor and all associated subcontractor employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal

Office, Director of Emergency Services, or Security Office. The contractor shall ensure compliance with all personal identity verification requirements as directed by Department of Defense (DoD), Headquarters Department of Army (HQDA) and/or local policy (see PWS 6.0). Should the Force Protection Condition (FPCON) change, the Government may require changes in contractor security matters or processes.

1.4.5.1 For contractors requiring Common Access Card (CAC): The CAC is the DoD Federal Personal Identity Verification (PIV) credential. Before CAC issuance, the contractor employee requires, at a minimum, a favorably adjudicated Tier 1 or an equivalent or higher investigation in accordance with Army Directive 2014-05. The contractor employee will be issued a CAC only if duties involve one of the following: (1) both physical access to a DoD facility and access, via logon, to DoD networks on-site or remotely; (2) remote access, via logon, to a DoD network using DoD-approved remote access procedures; or (3) physical access to multiple DoD facilities or multiple non DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. At the discretion of the sponsoring activity, an initial CAC may be issued based on a favorable review of the FBI fingerprint check and a successfully scheduled Tier 1 investigation at the Office of Personnel Management.

Sponsorship and enrollment information about each applicant must be registered in the Defense Enrollment Eligibility Reporting System (DEERS) through either the Real-Time Automated Personnel ID System (RAPIDS) using the DD Form 1172-2 or the Trusted Associate Sponsorship System (TASS).

1.4.5.1.1 Homeland Security Presidential Directive (HSPD)-12 Background Investigation Requirements: The contractor shall ensure that all contractor and subcontractor personnel whose duties require CAC card issuance obtain them, and shall process all CAC card applications. The contractor shall ensure that all employees requiring an initial background investigation complete a Personnel Security Investigation Portal (PSIP) form at Attachment TBD, at the earliest possible date and that this form is forwarded to the COR immediately. The COR will review the form for completeness and accuracy and forward it to the National Guard Bureau (NGB) Personnel Security manager who will initiate the investigation process via the PSIP. Contractor personnel will then receive two e-mail messages; the first will confirm that the investigative service provider has received the request, and the second will provide instructions for the completion of the appropriate form via the Electronic Questionnaires for Investigations Processing (e-QIP) system. Upon completion of the e-QIP questionnaire and submittal of all required documents, including fingerprint card to the security manager, the background investigation (BI) will be initiated. The contractor shall ensure immediate compliance with all instructions regarding background investigation processing, including those provided verbally, by e-mail or via a Government system. The contractor is cautioned that the entire process from submittal of the PSIP form to return of the FBI fingerprint check may routinely take from two to six weeks and shall factor this lead time into its hiring/placement process. The contractor shall make all reasonable efforts to ensure that contractor employees meet CAC eligibility standards upon assignment to the contract and shall be held responsible for delays, failure to meet

performance requirements or decreases in efficiency in accordance with the applicable inspection clause.

1.4.5.1.2 Trusted Associate Sponsorship System (TASS): The contractor shall process CAC applications through the TASS, the procedures for which are described below. Although there is no requirement for the contractor to designate a “Corporate Facility Security Officer" (FSO) to serve as its single point of contact for the BI, the TASS application process and other CAC and security-related matters, such designation facilitates these processes. If a Corporate FSO is not established, all contractor employees requiring a CAC will be required to process their own applications. The submission process for CAC applications is as follows:

1. The contractor's FSO or contractor employee shall submit requests for a CAC via email to the designated TASS Trusted Agent (TA). The TASS TA for this requirement will be the COR.

2. The Government will establish a TASS application account for each CAC Request and will provide each contractor employee a user ID and password, via email, to the contractor’s FSO or contractor employee. The FSO or contractor employee shall access the TASS account and complete the CAC application (entering/editing contractor information as applicable) at: https://tass.dmdc.osd.mil/tass/. The contractor’s FSO or contractor employee shall follow up to ensure that the TA is processing the request.

3. The Government will inform the contractor's applicant, via email, of one of the following:

a. Approval.* Upon approval, the information is transferred to the DEERS database and an email notification is sent to the contractor with instructions on obtaining their CAC. The contractor proceeds to a RAPIDS station (RAPIDS Site Locator: http://www.dmdc.osd.mil/rsl/).

b. Rejection.* The Government, in separate correspondence, will provide reason(s) for rejection.

c. Return. Additional information or correction to the application required by the contractor employee.

*The contractor shall maintain records of all approved and rejected applications.

1.4.5.1.3 At the RAPIDS station, the RAPIDS Verification Officer will verify the contractor employee by Social Security Number (SSN) and two forms of identification. Identity source documents must come from the list of acceptable documents included in Form I-9, OMB No. 1615-0047, "Employment Eligibility Verification". Consistent with applicable law, at least one document from the Form I-9 list shall be a valid (unexpired) State or Federal Government-issued picture ID. The Identity documents will be

inspected for authenticity and scanned and stored in the DEERS upon issuance of an ID. The photo ID requirement cannot be waived, consistent with applicable statutory requirements. The Verification Officer will capture primary and alternate fingerprints, picture, and updates to DEERS, and will then issue a CAC. Issued CACs will be valid for no longer than three years, or until the individual's contract end date (inclusive of any options), whichever is earlier.

1.4.5.1.4 The contractor shall manage requests for new or renewal CAC cards in sufficient time to ensure that all contractor employees have them when needed to perform work under this contract. The contractor shall provide at least 10 calendar days advance notice to the TA, unless there are extenuating circumstances approved by the COR or KO.

1.4.5.1.5 5 The contractor shall return issued CACs to the DEERS office upon departure or dismissal of each contractor employee, and shall obtain a receipt for each card and provide it to the TA/COR.

1.4.5.1.5.1 Failure to comply with these requirements may result in withholding of final payment.

1.4.5.1.6 The contractor shall obtain an Army Knowledge Online (AKO) email address for each applicant, including subcontractors, who may be deployed or require logical access to a Government computer network. Note: If employees of a contractor lose the privilege to access AKO, they lose the ability to renew their CAC. Therefore, it is critical that contractor employees maintain their AKO accounts.

1.4.5.2 Reserved.

1.4.5.3 Awareness Training (AT) Level 1: All contractor employees, including subcontractor employees, requiring access to Army installations, facilities, and controlled access areas shall complete AT Level 1 training within 30 calendar days after contract start date and within 30 calendar days of new employees commencing performance. The contractor shall submit certificates of completion for each affected contractor and subcontractor employee to the COR within 15 calendar days after completion of training by each employee or subcontractor personnel. AT Level 1 awareness training is available at the following website: https://jko.jten.mil/courses/atl1/launch.html.

1.4.5.4 Reserved.

1.4.5.5 Communications Security/Information Technology (COMSEC/IT) Security. All communications with DoD organizations are subject to COMSEC review. All telephone communications networks are continually subject to intercept by unfriendly intelligence organizations. DoD has authorized the military departments to conduct COMSEC monitoring and recording of telephone calls originating from, or terminating at, DoD organizations. Therefore, the contractor is advised that any time contractor personnel

place or receive a call they are subject to COMSEC procedures. The contractor shall ensure wide and frequent dissemination of the above information to all employees dealing with DoD information. The contractor shall abide by all Government regulations concerning the authorized use of the Government's computer network, including the restriction against using the network to recruit Government personnel or advertise job openings.

1.4.5.6 Use of Government Information Systems (IS) and access to Government networks is a revocable privilege, not a right. Users are the foundation of the DoD strategy and their actions affect the most vulnerable portion of the Army Enterprise Infostructure (AEI). Contractor employees shall have a favorable background investigation or hold a security clearance and access approvals commensurate with the level of information processed or available on the system. Contractor employees shall:

1.4.5.6.1 Comply with the command's Acceptable Use Policy (AUP) for Government owned IS and sign an AUP prior to or upon account activation.

1.4.5.6.2 Complete initial and/or annual Information Assurance (IA) training as defined in the IA Best Business Practices (BBP) training (https://atc.us.army.mil/iastar/docs/Training_BBP.pdf).

1.4.5.6.3 Mark and safeguard files, output products, and storage media per classification level and disseminate them only to individuals authorized to receive them with a valid need to know.

1.4.5.6.4 Protect IS and IS peripherals located in their respective areas in accordance with physical security and data protection requirements.

1.4.5.6.5 Practice safe network and Internet operating principles and take no actions that threaten the integrity of the system or network.

1.4.5.7 Army Training Certification Tracking System (ATCTS): All contractor employees with access to a Government information system shall be registered in ATCTS (https://atc.us.army.mil/iastar/index.php) at commencement of services, and shall successfully complete the DoD Information Assurance awareness training prior to access to the IS and then annually thereafter. (https://iatraining.us.army.mil/).

1.4.5.8 Information Assurance (IA) Training. All contractor employees and associated subcontractor employees shall complete the DoD IA Awareness Training before issuance of network access and annually thereafter.

1.4.5.9 Information Assurance (IA)/Information Technology (IT) certification. All contractor employees performing services involving IA/IT functions shall comply with DoD and Army workforce training requirements in DoDD 8140.01, DoD 8570.01-M and AR 25-2 within six months of the start of contract performance or appointment to IA/IT functions. In accordance with DoD 8570.01-M, DFARS 252.239.7001, and AR 25-2,

contractor employees supporting or performing IA/IT functions shall be appropriately certified upon contract award. The baseline certification as stipulated in DoD 8570.01-M shall be completed upon contract award.

1.4.5.10 Protection of Personally Identifiable Information (PII). The contractor shall protect all PII encountered in the performance of services in accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 224.103 Personally Identifiable Information and Department of Defense Directive (DoDD) 5400.11, Department of Defense Privacy Program, and DoD 5400.11-R. If a PII breach results from the contractor's violation of the aforementioned policies, the contractor shall bear all notification costs, call-center support costs, and credit monitoring service costs for all individuals whose PII has been compromised.

1.4.5.11 OPSEC Training: In accordance with AR 530-1, Operations Security, new contractor employees shall complete Level I OPSEC training within 30 calendar days of their reporting for duty and annually thereafter. The contractor shall submit certificates of completion for each contractor employee to the COR within 15 calendar days after completion of training. Level 1 OPSEC training is available at https://securityawareness.usalearning.gov/opsec/index.htm.

1.4.6 Physical Security. The contractor shall safeguard all Government property provided for contractor use. At the close of each work period, Government facilities, equipment and materials shall be secured.

1.4.6.1 Key Control. NOTE: All references to keys include key cards. The contractor shall establish and implement methods of ensuring that no keys/key cards issued by the Government are lost or misplaced or are used by unauthorized persons. No keys issued by the Government shall be duplicated**.** Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The contractor shall include procedures covering key control in the QCP.

1.4.6.1.1 The contractor shall immediately report any occurrences of lost or duplicated keys/key cards to the COR.

1.4.6.1.2 In the event keys, other than master keys, are lost or duplicated, the contractor shall, upon direction by the KO, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the Government replaces or re-keys the locks, the Government will deduct the total cost of lock replacement or re-keying from the monthly payment due the contractor. In the event a master key is lost or duplicated, the Government will replace all locks and keys for that system, and will deduct the total cost from the monthly payment due the contractor.

1.4.6.1.3 The contactor shall prohibit the use of the Government issued keys/key cards by any persons other than the contractor's employees. The contractor shall prohibit the opening of locked areas by contractor employees to permit entrance of persons other

than contactor employees engaged in the performance of services in those areas, or personnel authorized entrance by the KO.

1.4.7 Special Qualifications:

NOTE: The Government does not provide training to contractors. Contractors must ensure that any personnel performing under a contract are fully trained, licensed, certified, and otherwise qualified to provide services.

1.4.8 Post Award Conference/Periodic Progress Meetings: The contractor agrees to attend any post award conference convened by the KO in accordance with FAR 42.5. The KO, COR and other Government personnel, as appropriate, may meet periodically with the contractor to review the contactor's performance. At these meetings, the KO will apprise the contractor of how the Government views the contractor's performance and the contractor shall apprise the Government of problems, if any, being experienced. The contractor shall resolve outstanding issues raised by the Government. Contractor attendance at these meetings shall be at no additional cost to the Government.

1.4.9 Contract Manager (CM): The contactor shall designate a CM who shall ensure performance under this contract. The name of this person, and an alternate who shall act for the contractor when the CM is absent, shall be designated in writing to the KO. The CM or alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The CM shall work through the COR, to resolve issues, receive technical instructions, and ensure adequate performance of services. The CM shall ensure that contractor employees do not perform any services outside the scope of the contract without an official modification issued by the KO. The CM shall ensure contractor employees understand that services performed outside the scope of the contract are performed wholly at the expense of the contractor.

1.4.10 Identification of Contractor Employees: All contractor personnel attending meetings, answering Government telephones and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression that they are Government employees. The contractor shall ensure that all documents or reports produced by contractor personnel are suitably marked as contractor products or that contractor participation is appropriately disclosed. The contractor's status as a "contractor" shall be predominantly displayed in all correspondence types (to include signature blocks on e-mail) and dealings with Government or non-Government entities. Contractor personnel shall wear identification badges distinguishing themselves as such. The badges shall have the company name, employee name and the word "contractor" displayed.

1.4.10.1 The contractor shall retrieve all identification media (including vehicle passes) from its employees who depart employment for any reason. The contractor shall return all identification media (i.e., badges and vehicles passes) to the KO within 14 days of an employee's departure.

1.4.11. Combating Trafficking in Persons: The United States Government has adopted a zero tolerance policy regarding trafficking in persons. Contractors and contractor employees shall not engage in severe forms of trafficking in persons during the period of performance of the contract; procure commercial sex acts during the period of performance of the contract; or use forced labor in the performance of the contract. The Contractor shall notify its employees of the United States Government's zero tolerance policy, the actions that will be taken against employees for violations of this policy. The contractor shall take appropriate action, up to and including termination, against employees or subcontractors that violate the US Government policy as described at FAR 22.17.

1.4.12 Contractor Travel: The contractor shall travel to various armories and installations throughout West Virginia, and potentially out of state, in support of medical readiness events during the performance of this contract. The contractor will be authorized travel expenses consistent with the substantive provisions of the Joint Travel Regulation (JTR) and the limitation of funds specified in this contract. All travel requires COR recommendation for approval and/or authorization by the KO *prior* to travel arrangements being made.

1.4.13 Reserved.

1.4.14 Organizational Conflicts of Interest (OCI): The contractor and subcontractor personnel performing services under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent OCIs, as defined in FAR Subpart 9.5. The contractor shall notify the KO immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the KO to avoid or mitigate any such OCI. The contractor's mitigation plan will be determined to be acceptable solely at the discretion of the KO. In the event the KO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the KO may impose other remedies as he or she deems necessary, including prohibiting the contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.4.15 Reserved.

2.0 Definitions and Acronyms:

2.1 Definitions:

2.1.1 Contractor: A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

2.1.2 Defective Service: A service output that does not meet the standard of performance associated with the PWS.

2.1.3 Deliverable: Anything that can be physically delivered and includes non-manufactured things such as meeting minutes or reports.

2.1.4 Key Personnel: Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.5 Physical Security: Actions that prevent the loss or damage of Government property.

2.1.6 Quality Assurance: The Government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.7 Quality Assurance Surveillance Plan (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.8 Quality Control: All necessary measures taken by the Contractor to ensure that the quality of an end product or service shall meet contract requirements.

2.1.9 Subcontractor: One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.2 Acronyms:

| | |
|---|---|
| AEI | Army Enterprise Infostructure |
| AHLTA | Armed Forces Health Longitudinal Technology Application |
| AR | Army Regulation |
| AT/OPSEC | Antiterrorism/Operational Security |
| BH | Behavioral Health |
| BHC | Behavioral Health Counselor(s) |
| BI | Background Investigation |
| CM | Contract Manager |
| COR | Contracting Officer Representative |
| DA | Department of the Army |
| DD254 | Department of Defense Contract Security Classification Specification |
| DFARS | Defense Federal Acquisition Regulation Supplement |
| DoD | Department of Defense |
| DOEHRS | Defense Occupational and Environmental Health Readiness System |
| DSS | Deputy State Surgeon |
| eCase | Medchart module: Electronic Case |
| eMMPS | Medchart module: Electronic Medical Management Processing System |
| eProfile | MODS module: Electronic Profile |
| FAR | Federal Acquisition Regulation |

| | |
|---|---|
| FMR | Fully Medically Ready |
| GFP/M/E/S | Government Furnished Property/Material/Equipment/Services |
| HQDA | Headquarters, Department of the Army |
| HSPD | Homeland Security Presidential Directive |
| IA | Information Assurance |
| IMR | Individual Medical Readiness |
| IS | Information System(s) |
| KO | Contracting Officer |
| MEDCHART | Medical Electronic Data Care History And Readiness Tracking |
| MEDPROS | MODS module: Medical Protection System |
| MODS | Medical Operational Data System |
| MRNCO | Medical Readiness Non-Commissioned Officer |
| MWDE | MODS module: MEDPROS Web Data Entry |
| NGB | National Guard Bureau |
| OCI | Organizational Conflict of Interest |
| PII | Personally Identifiable Information |
| PIPO | Phase In/Phase Out |
| POC | Point of Contact |
| PRS | Performance Requirements Summary |
| PWS | Performance Work Statement |
| QA | Quality Assurance |
| QASP | Quality Assurance Surveillance Plan |
| QC | Quality Control |
| QCP | Quality Control Program |
| SM | Service Member |
| SRP | Soldier Readiness Process |
| SCR | Service Contract Reporting |
| SSN | Social Security Number |
| STR | Service Treatment Record |
| TE | Technical Exhibit |
| USD(I) | Under Secretary of Defense for Intelligence |
| WVARNG | West Virginia Army National Guard |

3.0 Government Furnished Property, Material, Equipment and Services (GFP/M/E/S): The Government will provide the property, material, equipment, and/or services listed below solely for the purpose of performance under this contract:

3.1 Property: The Government will furnish the necessary workspace for the contractor to perform services outlined in this PWS to include desk space, telephones, computers and other items necessary to maintain an office environment.

3.2 Materials: None

3.3 Equipment: None

3.4 Services: None

3.5 Utilities: All utilities in the facility will be available for the contactor's use in the performance of this contract. The contractor shall instruct employees in utilities conservation practices. The contractor shall operate under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount.

4.0 Contractor Furnished Property, Materials, and Equipment (CFP/M/E):

4.1 General: Except for those items specifically stated to be Government-Furnished in Paragraph 3.0, the contractor shall furnish everything required to perform these services as indicated in Paragraph 1.1.

5.0 Requirements:

5.1 The contractor shall abide by Privacy Act, HIPAA regulations, and guidelines.

5.2 The contractor shall obtain and maintain access to, and utilize the following military medical systems: AHLTA; MODS: eProfile, MEDPROS; and MEDCHART: eCase, eMMPS, HRR.

5.3 The contractor shall provide Care Coordination for all assigned Soldiers of the WVARNG.

5.3.1 The contractor shall manage Soldiers' medical documentation throughout the continuum of care from the identification of a condition to when the Soldier is either considered medically ready to deploy, or is administratively separated from the military.

5.3.2 The contractor shall obtain completed release of medical information forms from Soldiers as required, and submit these forms to the Soldiers' medical provider in whatever manner they require (fax or hardcopy) to obtain all pertinent documentation.

5.3.3 The contractor shall maintain awareness of, and work with individual Service Members (SM), their unit command teams, and the G1 Human Resources department to track the status and documentation of any and all referrals for medical care, to include: Line Of Duty Care referrals from MEDCHART: eMMPS; MODS: Post-Deployment Health Assessment and Health Re-Assessment; and DOEHRS Hearing Conservation program.

5.3.4 The contractor shall track medical appointments by communication with the Soldier and/or his/her unit to ensure Soldier attendance and submission of follow-up medical documentation. Contractor shall obtain medical documentation if not provided by the SM.

5.3.5 The contractor shall log in eCase any contact with case managed SMs and/or their unit, to include: email, voice call, personal interview, etc.

5.3.6 The contractor shall submit case processing, medical documentation, and profile concerns to the State Surgeon or his designee as soon as identified, either in person or by email.

5.3.7 The contractor shall ensure all medical documentation received from SMs and/or their medical provider(s) is received, scanned, and uploaded into MEDCHART: Health Readiness Record (HRR), and is properly indexed once uploaded. All documentation will also be retained in hardcopy in the Soldier's Service Treatment Record (STR).

5.3.8 The contractor shall maintain Soldier medical records and Service Treatment Records (STR) in accordance with Army Regulation (AR) 40-66.

5.3.9 The contractor shall maintain awareness and working knowledge of all applicable Army Medical Department regulations, policies and publications applicable to Individual Medical Readiness (IMR), as well as applicable Combatant Command Medical Deployability guidance.

5.4 The contractor shall attend and assist with PHA and SRP events as required.

5.4.1 The contractor shall run MEDPROS reports before and/or after PHA/SRP events as required. Ensure all scheduled services are completed/updated and current medical status is reflected.

5.4.2 The contractor shall review and update health assessment (PHA, SRP) lab results in electronic and hardcopy medical records.

5.4.3 The contractor shall perform MODS MWDE data entry of any and all required medical information to include: immunizations, designation of pregnancy, vision readiness classification, medical warning tags, HIV blood draw date, lab results, etc.

5.5 The contractor shall educate Soldiers on resources available to improve medical and dental readiness.

5.6 Service Contract Reporting: Reserved

6.0 Applicable Publications: Publications applicable to this PWS are listed below:

| Publication (Chapter/Page) | Date of Publication | Mandatory or Advisory | Website |
|---|---|---|---|
| Federal Acquisition Regulation | | | https://www.acquisition.gov/?q=browsefar |
| Defense Federal Acquisition Regulation Supplement | | | http://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html or https://www.acquisition.gov/dfars |
| Joint Travel Regulation (JTR) | | | https://www.defensetravel.dod.mil/site/travelreg.cfm |
| DoDM 1000.13-M-V1 DoD Identification (ID) Cards (Enclosure 2, paragraph 3.b) | 01/23/2014 (Change 1: 07/28/2020) | | http://www.esd.whs.mil/Directives/issuances/dodm |

| | | | |
|---|---|---|---|
| Federal Information Processing Standards (FIPS) Publication 201-2 Personal Identity Verification (PIV) of Federal Employees and Contractors (paragraph 9) | August 2013 | | http://nvlpubs.nist.gov/nistpubs/FIPS/NIST.FIPS.201-2.pdf |
| DoDM 5200.2 Procedures for the DoD Personnel Security Program (PSP) | 04/03/2017 | | https://www.esd.whs.mil/Directives/issuances/dodm/ |
| DoDI 5200.46 DoD Investigative and Adjudicative Guidance for Issuing the Common Access Card (CAC) | 09/09/14 (Change 1: 05/04/2018) | | https://www.esd.whs.mil/Directives/issuances/dodi/ |
| Homeland Security Presidential Directive (HSPD)-12 Policy for a Common Identification Standard for Federal Employees and Contractors | 08/27/2004 | | https://www.dhs.gov/homeland-security-presidential-directive-12 |
| DoDI 5400.11 Department of Defense Privacy and Civil Liberties Programs | 01/29/2019 | | https://www.esd.whs.mil/Directives/issuances/dodi/ |
| DoD 5400.11-R Department of Defense Privacy Program | 05/14/2007 | | https://www.esd.whs.mil/Directives/issuances/dodm/ |
| DoDD 8140.01 Cyberspace Workforce Management | 10/05/2020 | | https://www.esd.whs.mil/Directives/issuances/dodd/ |
| DoD 8570.01-M Information Assurance Workforce Improvement Program | 12/19/2005 (Change 4: 11/10/2015) | | https://www.esd.whs.mil/Directives/issuances/dodm/ |
| DoD 5220.22-M National Industrial Security Program Operating Manual (NISPOM) | 02/28/2006 (Change 2: 05/18/2016) | | https://www.esd.whs.mil/Directives/issuances/dodm/ |
| Army Directive 2014-05 Policy and Implementation Procedures for Common Access Card Credentialing and Installation Access for Uncleared Contractors | 03/07/2014 | | https://armypubs.army.mil/ProductMaps/PubForm/ArmyDir.aspx |
| AR 25-2 Information Assurance | 04/04/2019 | | http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx |
| AR 530-1 Operations Security | 09/26/2014 | | http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx |
| AR 525-13 Antiterrorism | 12/09/2019 | | http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx |
| AR 381-12 Threat Awareness and Reporting Program (TARP) (Section II, ¶ 2-4.b) | 06/01/2016 | | http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx |
| AR 40-66 Medical Record Administration and Health Care Documentation | 06/17/2008 | Mandatory | http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx |
| AR 40-501 Standards of Medical Fitness | 06/27/2019 | Mandatory | http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx |
| AR 40-502 Medical Readiness | 06/27/2019 | Mandatory | http://armypubs.army.mil/ProductMaps/PubForm/AR.aspx |

6.1 Applicable Forms: Forms applicable to the PWS are listed below:

| Form | Date | Website |
|---|---|---|
| DD 1172-2<br>Application for Identification Card/DEERS Enrollment | Mar 2017 | http://www.dtic.mil/whs/directives/forms/index.htm |
| I-9<br>Employment Eligibility Verification | 10/21/2019 | https://www.uscis.gov/sites/default/files/files/form/i-9.pdf |
| DD 441<br>Department of Defense Security Agreement | Feb 2020 | http://www.dtic.mil/whs/directives/forms/dd/ddforms0001-0499.htm |
| DD 250<br>Material Inspection and Receiving Report | Aug 2000 | https://www.esd.whs.mil/Directives/forms/dd0001_0499/ |

## TECHNICAL EXHIBIT 1

## Performance Requirements Summary (PRS)

This PRS includes performance objectives the Government will use to determine contractor performance and will compare contractor performance to the Acceptable Quality Level (AQL).

| Performance Objective | Performance Standard | Acceptable Quality Levels (AQL) | Surveillance Method / By Whom |
|---|---|---|---|
| 5.2<br>Military medical systems access | The Contractor shall obtain and maintain access to AHLTA; MODS: eCase, eProfile, MEDPROS, MWDE; and MEDCHART: eCase, eMMPS and HRR. | Not maintaining system accesses not more than once per Period of Performance (PoP) | COR will make periodic inspections / spot checks |
| 5.3.2<br>Obtain Release of Information Forms | The Contractor shall obtain signed forms from SM, submit to SMs' medical provider to obtain pertinent documentation. | Not obtaining required release forms not more than once per PoP | COR will make periodic inspections / spot checks |
| 5.3.4<br>Track medical appointments | The Contractor shall communicate with SM and/or unit to ensure attendance, and obtain medical records for the appointment | Not tracking appointments and obtaining documentation not more than once per PoP | COR will make periodic inspections / spot checks |
| 5.3.7<br>Medical documentation management | The Contractor shall ensure all documents are scanned and uploaded into HRR, properly indexed in the module; and hardcopies retained in STR. | Not maintaining medical records electronically and in hardcopy not more than once per PoP | COR will make periodic inspections / spot checks |

| | | | |
|---|---|---|---|

# TECHNICAL EXHIBIT 2
## Deliverables Schedule

| PWS Reference / Deliverable Title | Frequency | Number of Copies | Medium/Format | Submit To |
|---|---|---|---|---|
| 1.4.5.1.5 Receipt for each CAC card returned to the DEERS office | Within 15 calendar days of returning issued CACs to the DEERS office upon departure or dismissal of each contractor employee | 1 | Electronic Submission | TA/COR |
| 1.4.5.3 AT Level 1 Awareness Training Certificates | Provide within 15 calendar days after employee completes training. | 1 | Electronic Submission | COR |
| 1.4.5.11 OPSEC Training Certificates | Provide within 15 calendar days after employee completes training. | 1 | Electronic Submission | COR |
| 1.4.10.1 Identification Media | Return within 14 days of employee's departure from contract performance. | Original(s) | Hard Copy | KO |

# TECHNICAL EXHIBIT 3

## Estimated Workload Data

This information is provided for historical background only. It is not a guarantee of workload quantities.

| ITEM | NAME | ANNUAL ESTIMATED QUANTITY |
|---|---|---|
| 1. | Cases Managed requiring Care Coordination | 2018 - 303<br>2019 - 230<br>2020 – 233 |
| 2. | PHA / SRP Events Attended that required travel | 2018 – 10<br>2019 – 11<br>2020 – 19 |
| 3. | PHA / SRP Events Attended that DID NOT require travel | 2018 – 22<br>2019 – 22<br>2020 – 28 |

WD WV2015-5631 REV 17

"REGISTER OF WAGE DETERMINATIONS UNDER | U.S. DEPARTMENT OF LABOR
THE SERVICE CONTRACT ACT | EMPLOYMENT STANDARDS ADMINISTRATION
By direction of the Secretary of Labor | WAGE AND HOUR DIVISION
| WASHINGTON D.C. 20210
|
|
|
| Wage Determination No.: 2015-4347
Daniel W. Simms Division of | Revision No.: 17
Director Wage Determinations| Date Of Last Revision: 12/27/2021
_____|_____

Note: Contracts subject to the Service Contract Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

If the contract is entered into on or after January 30 2022 or the contract is renewed or extended (e.g. an option is exercised) on or after January 30 2022 Executive Order 14026 generally applies to the contract. The contractor must pay all covered workers at least $15.00 per hour (or the applicable wage rate listed on this wage determination if it is higher) for all hours spent performing on that contract in 2022.

If the contract was awarded on or between January 1 2015 and January 29 2022 and the contract is not renewed or extended on or after January 30 2022 Executive Order 13658 generally applies to the contract. The contractor must pay all covered workers at least $11.25 per hour (or the applicable wage rate listed on this wage determination if it is higher) for all hours spent performing on that contract in 2022.
The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under the Executive Orders is available at www.dol.gov/whd/govcontracts.

State: West Virginia
Area: West Virginia Counties of Boone Clay Kanawha

**Fringe Benefits Required Follow the Occupational Listing**

| OCCUPATION CODE - TITLE | FOOTNOTE | RATE |
|---|---|---|
| 01000 - Administrative Support And Clerical Occupations | | |
| 01011 - Accounting Clerk I | | 13.97 |
| 01012 - Accounting Clerk II | | 18.04 |
| 01013 - Accounting Clerk III | | 20.19 |
| 01020 - Administrative Assistant | | 24.53 |
| 01035 - Court Reporter | | 23.53 |
| 01041 - Customer Service Representative I | | 13.01 |
| 01042 - Customer Service Representative II | | 14.63 |
| 01043 - Customer Service Representative III | | 15.96 |
| 01051 - Data Entry Operator I | | 12.96 |
| 01052 - Data Entry Operator II | | 14.14 |
| 01060 - Dispatcher Motor Vehicle | | 17.51 |
| 01070 - Document Preparation Clerk | | 13.64 |

01090 - Duplicating Machine Operator 13.64
01111 - General Clerk I 13.38
01112 - General Clerk II 14.60
01113 - General Clerk III 16.40
01120 - Housing Referral Assistant 20.91
01141 - Messenger Courier 13.36
01191 - Order Clerk I 13.69
01192 - Order Clerk II 14.94
01261 - Personnel Assistant (Employment) I 16.55
01262 - Personnel Assistant (Employment) II 18.51
01263 - Personnel Assistant (Employment) III 20.65
01270 - Production Control Clerk 25.01
01290 - Rental Clerk 14.51
01300 - Scheduler Maintenance 16.78
01311 - Secretary I 16.78
01312 - Secretary II 18.76
01313 - Secretary III 20.91
01320 - Service Order Dispatcher 15.65
01410 - Supply Technician 24.53
01420 - Survey Worker 14.66
01460 - Switchboard Operator/Receptionist 13.88
01531 - Travel Clerk I 13.87
01532 - Travel Clerk II 14.82
01533 - Travel Clerk III 15.80
01611 - Word Processor I 14.94
01612 - Word Processor II 16.78
01613 - Word Processor III 18.76
05000 - Automotive Service Occupations
05005 - Automobile Body Repairer Fiberglass 19.10
05010 - Automotive Electrician 15.96
05040 - Automotive Glass Installer 14.99
05070 - Automotive Worker 14.99
05110 - Mobile Equipment Servicer 13.17
05130 - Motor Equipment Metal Mechanic 16.74
05160 - Motor Equipment Metal Worker 14.99
05190 - Motor Vehicle Mechanic 16.74
05220 - Motor Vehicle Mechanic Helper 12.61
05250 - Motor Vehicle Upholstery Worker 14.06
05280 - Motor Vehicle Wrecker 14.99
05310 - Painter Automotive 15.96
05340 - Radiator Repair Specialist 14.99
05370 - Tire Repairer 13.81
05400 - Transmission Repair Specialist 16.74
07000 - Food Preparation And Service Occupations
07010 - Baker 13.94
07041 - Cook I 13.06
07042 - Cook II 15.02
07070 - Dishwasher 10.11
07130 - Food Service Worker 10.81
07210 - Meat Cutter 16.28
07260 - Waiter/Waitress 10.82
09000 - Furniture Maintenance And Repair Occupations
09010 - Electrostatic Spray Painter 22.74
09040 - Furniture Handler 14.90
09080 - Furniture Refinisher 22.48

09090 - Furniture Refinisher Helper 17.92
09110 - Furniture Repairer Minor 20.08
09130 - Upholsterer 22.48
11000 - General Services And Support Occupations
11030 - Cleaner Vehicles 11.10
11060 - Elevator Operator 11.13
11090 - Gardener 14.75
11122 - Housekeeping Aide 11.72
11150 - Janitor 11.72
11210 - Laborer Grounds Maintenance 11.38
11240 - Maid or Houseman 11.66
11260 - Pruner 10.32
11270 - Tractor Operator 13.69
11330 - Trail Maintenance Worker 11.38
11360 - Window Cleaner 12.92
12000 - Health Occupations
12010 - Ambulance Driver 15.66
12011 - Breath Alcohol Technician 18.74
12012 - Certified Occupational Therapist Assistant 29.54
12015 - Certified Physical Therapist Assistant 27.03
12020 - Dental Assistant 15.77
12025 - Dental Hygienist 28.37
12030 - EKG Technician 24.76
12035 - Electroneurodiagnostic Technologist 24.76
12040 - Emergency Medical Technician 15.66
12071 - Licensed Practical Nurse I 16.76
12072 - Licensed Practical Nurse II 18.74
12073 - Licensed Practical Nurse III 20.89
12100 - Medical Assistant 14.50
12130 - Medical Laboratory Technician 23.98
12160 - Medical Record Clerk 15.55
12190 - Medical Record Technician 17.53
12195 - Medical Transcriptionist 16.71
12210 - Nuclear Medicine Technologist 41.18
12221 - Nursing Assistant I 11.85
12222 - Nursing Assistant II 13.32
12223 - Nursing Assistant III 14.54
12224 - Nursing Assistant IV 16.33
12235 - Optical Dispenser 16.62
12236 - Optical Technician 16.76
12250 - Pharmacy Technician 14.71
12280 - Phlebotomist 15.46
12305 - Radiologic Technologist 25.55
12311 - Registered Nurse I 24.95
12312 - Registered Nurse II 30.52
12313 - Registered Nurse II Specialist 30.52
12314 - Registered Nurse III 36.93
12315 - Registered Nurse III Anesthetist 36.93
12316 - Registered Nurse IV 44.26
12317 - Scheduler (Drug and Alcohol Testing) 23.21
12320 - Substance Abuse Treatment Counselor 19.04
13000 - Information And Arts Occupations
13011 - Exhibits Specialist I 19.00
13012 - Exhibits Specialist II 23.53
13013 - Exhibits Specialist III 28.78

13041 - Illustrator I 19.00
13042 - Illustrator II 23.53
13043 - Illustrator III 28.78
13047 - Librarian 26.06
13050 - Library Aide/Clerk 13.49
13054 - Library Information Technology Systems Administrator 23.53
13058 - Library Technician 17.85
13061 - Media Specialist I 16.97
13062 - Media Specialist II 19.00
13063 - Media Specialist III 21.18
13071 - Photographer I 18.11
13072 - Photographer II 20.26
13073 - Photographer III 25.09
13074 - Photographer IV 30.70
13075 - Photographer V 37.15
13090 - Technical Order Library Clerk 18.07
13110 - Video Teleconference Technician 16.20
14000 - Information Technology Occupations
14041 - Computer Operator I 16.09
14042 - Computer Operator II 18.01
14043 - Computer Operator III 20.08
14044 - Computer Operator IV 22.31
14045 - Computer Operator V 24.70
14071 - Computer Programmer I (see 1) 18.75
14072 - Computer Programmer II (see 1) 23.22
14073 - Computer Programmer III (see 1)
14074 - Computer Programmer IV (see 1)
14101 - Computer Systems Analyst I (see 1)
14102 - Computer Systems Analyst II (see 1)
14103 - Computer Systems Analyst III (see 1)
14150 - Peripheral Equipment Operator 16.09
14160 - Personal Computer Support Technician 22.67
14170 - System Support Specialist 26.54
15000 - Instructional Occupations
15010 - Aircrew Training Devices Instructor (Non-Rated) 29.42
15020 - Aircrew Training Devices Instructor (Rated) 35.59
15030 - Air Crew Training Devices Instructor (Pilot) 42.66
15050 - Computer Based Training Specialist / Instructor 29.42
15060 - Educational Technologist 32.92
15070 - Flight Instructor (Pilot) 42.66
15080 - Graphic Artist 18.70
15085 - Maintenance Test Pilot Fixed Jet/Prop 42.66
15086 - Maintenance Test Pilot Rotary Wing 42.66
15088 - Non-Maintenance Test/Co-Pilot 42.66
15090 - Technical Instructor 19.18
15095 - Technical Instructor/Course Developer 23.46
15110 - Test Proctor 15.48
15120 - Tutor 15.48
16000 - Laundry Dry-Cleaning Pressing And Related Occupations
16010 - Assembler 10.49
16030 - Counter Attendant 10.49
16040 - Dry Cleaner 13.04
16070 - Finisher Flatwork Machine 10.49
16090 - Presser Hand 10.49

16110 - Presser Machine Drycleaning 10.49
16130 - Presser Machine Shirts 10.49
16160 - Presser Machine Wearing Apparel Laundry 10.49
16190 - Sewing Machine Operator 13.98
16220 - Tailor 14.88
16250 - Washer Machine 11.20
19000 - Machine Tool Operation And Repair Occupations
19010 - Machine-Tool Operator (Tool Room) 24.28
19040 - Tool And Die Maker 29.25
21000 - Materials Handling And Packing Occupations
21020 - Forklift Operator 16.75
21030 - Material Coordinator 25.01
21040 - Material Expediter 25.01
21050 - Material Handling Laborer 13.90
21071 - Order Filler 12.35
21080 - Production Line Worker (Food Processing) 16.75
21110 - Shipping Packer 14.55
21130 - Shipping/Receiving Clerk 14.55
21140 - Store Worker I 13.37
21150 - Stock Clerk 17.99
21210 - Tools And Parts Attendant 16.75
21410 - Warehouse Specialist 16.75
23000 - Mechanics And Maintenance And Repair Occupations
23010 - Aerospace Structural Welder 27.47
23019 - Aircraft Logs and Records Technician 21.92
23021 - Aircraft Mechanic I 26.10
23022 - Aircraft Mechanic II 27.47
23023 - Aircraft Mechanic III 28.65
23040 - Aircraft Mechanic Helper 18.93
23050 - Aircraft Painter 24.88
23060 - Aircraft Servicer 21.92
23070 - Aircraft Survival Flight Equipment Technician 24.88
23080 - Aircraft Worker 23.37
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I 23.37
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II 26.10
23110 - Appliance Mechanic 24.28
23120 - Bicycle Repairer 19.83
23125 - Cable Splicer 33.11
23130 - Carpenter Maintenance 21.37
23140 - Carpet Layer 22.80
23160 - Electrician Maintenance 27.43
23181 - Electronics Technician Maintenance I 22.80
23182 - Electronics Technician Maintenance II 26.58
23183 - Electronics Technician Maintenance III 27.87
23260 - Fabric Worker 21.36
23290 - Fire Alarm System Mechanic 21.93
23310 - Fire Extinguisher Repairer 19.83
23311 - Fuel Distribution System Mechanic 31.66
23312 - Fuel Distribution System Operator 24.65
23370 - General Maintenance Worker 16.77
23380 - Ground Support Equipment Mechanic 26.10
23381 - Ground Support Equipment Servicer 21.92
23382 - Ground Support Equipment Worker 23.37

23391 - Gunsmith I 19.83
23392 - Gunsmith II 22.80
23393 - Gunsmith III 25.47
23410 - Heating Ventilation And Air-Conditioning Mechanic 23.09
23411 - Heating Ventilation And Air Contidioning Mechanic (Research Facility) 24.30
23430 - Heavy Equipment Mechanic 23.70
23440 - Heavy Equipment Operator 20.06
23460 - Instrument Mechanic 25.47
23465 - Laboratory/Shelter Mechanic 24.28
23470 - Laborer 13.90
23510 - Locksmith 24.28
23530 - Machinery Maintenance Mechanic 25.06
23550 - Machinist Maintenance 23.24
23580 - Maintenance Trades Helper 15.16
23591 - Metrology Technician I 25.47
23592 - Metrology Technician II 26.81
23593 - Metrology Technician III 27.95
23640 - Millwright 25.47
23710 - Office Appliance Repairer 21.37
23760 - Painter Maintenance 20.92
23790 - Pipefitter Maintenance 27.59
23810 - Plumber Maintenance 27.32
23820 - Pneudraulic Systems Mechanic 25.47
23850 - Rigger 25.47
23870 - Scale Mechanic 22.80
23890 - Sheet-Metal Worker Maintenance 25.47
23910 - Small Engine Mechanic 19.64
23931 - Telecommunications Mechanic I 31.50
23932 - Telecommunications Mechanic II 33.16
23950 - Telephone Lineman 33.44
23960 - Welder Combination Maintenance 26.24
23965 - Well Driller 23.23
23970 - Woodcraft Worker 25.47
23980 - Woodworker 19.83
24000 - Personal Needs Occupations
24550 - Case Manager 14.67
24570 - Child Care Attendant 10.00
24580 - Child Care Center Clerk 12.48
24610 - Chore Aide 10.52
24620 - Family Readiness And Support Services Coordinator 14.67
24630 - Homemaker 14.67
25000 - Plant And System Operations Occupations
25010 - Boiler Tender 25.47
25040 - Sewage Plant Operator 18.83
25070 - Stationary Engineer 25.47
25190 - Ventilation Equipment Tender 17.92
25210 - Water Treatment Plant Operator 18.83
27000 - Protective Service Occupations
27004 - Alarm Monitor 18.40
27007 - Baggage Inspector 12.32
27008 - Corrections Officer 17.88
27010 - Court Security Officer 17.88

27030 - Detection Dog Handler 13.78
27040 - Detention Officer 17.88
27070 - Firefighter 17.88
27101 - Guard I 12.32
27102 - Guard II 13.78
27131 - Police Officer I 20.41
27132 - Police Officer II 22.68
28000 - Recreation Occupations
28041 - Carnival Equipment Operator 12.83
28042 - Carnival Equipment Repairer 13.87
28043 - Carnival Worker 9.68
28210 - Gate Attendant/Gate Tender 14.96
28310 - Lifeguard 12.47
28350 - Park Attendant (Aide) 16.53
28510 - Recreation Aide/Health Facility Attendant 12.21
28515 - Recreation Specialist 19.80
28630 - Sports Official 12.91
28690 - Swimming Pool Operator 15.95
29000 - Stevedoring/Longshoremen Occupational Services
29010 - Blocker And Bracer 24.57
29020 - Hatch Tender 24.57
29030 - Line Handler 24.57
29041 - Stevedore I 23.01
29042 - Stevedore II 26.16
30000 - Technical Occupations
30010 - Air Traffic Control Specialist Center (HFO) (see 2) 40.29
30011 - Air Traffic Control Specialist Station (HFO) (see 2) 27.78
30012 - Air Traffic Control Specialist Terminal (HFO) (see 2) 30.59
30021 - Archeological Technician I 19.46
30022 - Archeological Technician II 21.76
30023 - Archeological Technician III 26.96
30030 - Cartographic Technician 26.96
30040 - Civil Engineering Technician 24.87
30051 - Cryogenic Technician I 29.86
30052 - Cryogenic Technician II 32.98
30061 - Drafter/CAD Operator I 19.46
30062 - Drafter/CAD Operator II 21.76
30063 - Drafter/CAD Operator III 24.26
30064 - Drafter/CAD Operator IV 29.86
30081 - Engineering Technician I 15.68
30082 - Engineering Technician II 17.59
30083 - Engineering Technician III 22.90
30084 - Engineering Technician IV 25.79
30085 - Engineering Technician V 31.55
30086 - Engineering Technician VI 38.17
30090 - Environmental Technician 24.61
30095 - Evidence Control Specialist 26.96
30210 - Laboratory Technician 33.14
30221 - Latent Fingerprint Technician I 29.86
30222 - Latent Fingerprint Technician II 32.51
30240 - Mathematical Technician 28.90
30361 - Paralegal/Legal Assistant I 19.58
30362 - Paralegal/Legal Assistant II 24.24
30363 - Paralegal/Legal Assistant III 29.67
30364 - Paralegal/Legal Assistant IV 35.88

30375 - Petroleum Supply Specialist 32.98
30390 - Photo-Optics Technician 26.96
30395 - Radiation Control Technician 32.98
30461 - Technical Writer I 25.72
30462 - Technical Writer II 31.46
30463 - Technical Writer III 38.06
30491 - Unexploded Ordnance (UXO) Technician I 25.60
30492 - Unexploded Ordnance (UXO) Technician II 30.98
30493 - Unexploded Ordnance (UXO) Technician III 37.13
30494 - Unexploded (UXO) Safety Escort 25.60
30495 - Unexploded (UXO) Sweep Personnel 25.60
30501 - Weather Forecaster I 29.86
30502 - Weather Forecaster II 36.33
30620 - Weather Observer Combined Upper Air Or Surface Programs (see 2) 24.26
30621 - Weather Observer Senior (see 2) 26.96
31000 - Transportation/Mobile Equipment Operation Occupations
31010 - Airplane Pilot 30.98
31020 - Bus Aide 14.18
31030 - Bus Driver 19.47
31043 - Driver Courier 13.14
31260 - Parking and Lot Attendant 10.03
31290 - Shuttle Bus Driver 13.27
31310 - Taxi Driver 12.71
31361 - Truckdriver Light 14.20
31362 - Truckdriver Medium 15.27
31363 - Truckdriver Heavy 21.99
31364 - Truckdriver Tractor-Trailer 21.99
99000 - Miscellaneous Occupations
99020 - Cabin Safety Specialist 15.10
99030 - Cashier 10.31
99050 - Desk Clerk 10.95
99095 - Embalmer 30.90
99130 - Flight Follower 25.60
99251 - Laboratory Animal Caretaker I 11.33
99252 - Laboratory Animal Caretaker II 12.25
99260 - Marketing Analyst 23.23
99310 - Mortician 30.90
99410 - Pest Controller 17.78
99510 - Photofinishing Worker 13.45
99710 - Recycling Laborer 18.36
99711 - Recycling Specialist 21.68
99730 - Refuse Collector 16.65
99810 - Sales Clerk 10.78
99820 - School Crossing Guard 14.47
99830 - Survey Party Chief 25.38
99831 - Surveying Aide 15.70
99832 - Surveying Technician 21.55
99840 - Vending Machine Attendant 15.17
99841 - Vending Machine Repairer 18.29
99842 - Vending Machine Repairer Helper 15.17

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Note: Executive Order (EO) 13706 Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Service Contract Act for which

the contract is awarded (and any solicitation was issued) on or after January 1 2017. If this contract is covered by the EO the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness injury or other health-related needs including preventive care; to assist a family member (or person who is like family to the employee) who is ill injured or has other health-related needs including preventive care; or for reasons resulting from or to assist a family member (or person who is like family to the employee) who is the victim of domestic violence sexual assault or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.
ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:
HEALTH & WELFARE: $4.60 per hour up to 40 hours per week or $184.00 per week or $797.33 per month
HEALTH & WELFARE EO 13706: $4.23 per hour up to 40 hours per week or $169.20 per week or $733.20 per month*
*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706 Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.
VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor 3 weeks after 8 years and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor wherever employed and with the predecessor contractors in the performance of similar work at the same Federal facility. (See 29 CFR 4.173)
HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day Martin Luther King Jr.'s Birthday Washington's Birthday Memorial Day Juneteenth National Independence Day Independence Day Labor Day Columbus Day Veterans' Day Thanksgiving Day and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:
1) COMPUTER EMPLOYEES: Under the SCA at section 8(b) this wage determination does not apply to any employee who individually qualifies as a bona fide executive administrative or professional employee as defined in 29 C.F.R. Part 541. Because most Computer System Analysts and Computer Programmers who are compensated at a rate not less than $27.63 (or on a salary or fee basis at a rate not less than $455 per week) an hour would likely qualify as exempt computer professionals (29 C.F.R. 541. 400) wage rates may not be listed on this wage determination for all occupations within those job families. In addition because this wage determination may not list a wage rate for some or all occupations within those job families if the survey data indicates that the prevailing wage rate for the occupation equals or exceeds $27.63 per hour conformances may be necessary for certain nonexempt employees. For example if an individual employee is nonexempt but nevertheless performs duties within the scope of one of the Computer Systems Analyst or Computer Programmer occupations for which this wage determination does not specify an SCA wage rate then the wage rate for that employee must be conformed in accordance with the conformance procedures described in the conformance note included on this wage determination.
Additionally because job titles vary widely and change quickly in the computer industry job titles are not determinative of the application of the computer professional exemption. Therefore the exemption applies only to computer employees who satisfy the compensation requirements and whose primary duty consists of:

(1) The application of systems analysis techniques and procedures including consulting with users to determine hardware software or system functional specifications;
(2) The design development documentation analysis creation testing or modification of computer systems or programs including prototypes based on and related to user or system design specifications;
(3) The design documentation testing creation or modification of computer programs related to machine operating systems; or
(4) A combination of the aforementioned duties the performance of which requires the same level of skills. (29 C.F.R. 541.400).
2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **
An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance explosives and incendiary materials. This includes work such as screening blending dying mixing and pressing of sensitive ordnance explosives and pyrotechnic compositions such as lead azide black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization modification renovation demolition and maintenance operations on sensitive ordnance explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.
A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with or in close proximity to ordnance (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands face or arms of the employee engaged in the operation irritation of the skin minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving unloading storage and hauling of ordnance explosive and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance explosives and incendiary material differential pay.
** UNIFORM ALLOWANCE **
If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract by the employer by the state or local law etc.) the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:
The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition where uniform cleaning and maintenance is made the responsibility of the employee all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount or the furnishing of contrary affirmative proof as to the actual cost) reimburse all employees for such cleaning and maintenance at a rate of $3.35 per week (or $.67 cents per day). However in

those instances where the uniforms furnished are made of ""wash and wear"" materials may be routinely washed and dried with other personal garments and do not require any special treatment such as dry cleaning daily washing or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract by the contractor by law or by the nature of the work there is no requirement that employees be reimbursed for uniform maintenance costs.

** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS **

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"" Fifth Edition (Revision 1) dated September 2015 unless otherwise indicated.

** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE Standard Form 1444 (SF-1444) **
Conformance Process:
The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e. the work to be performed is not performed by any classification listed in the wage determination) be classified by the contractor so as to provide a reasonable relationship (i.e. appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification wage rate and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:
1) When preparing the bid the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
2) After contract award the contractor prepares a written report listing in order the proposed classification title(s) a Federal grade equivalency (FGE) for each proposed classification(s) job description(s) and rationale for proposed wage rate(s) including information regarding the agreement or disagreement of the authorized representative of the employees involved or where there is no authorized representative the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
3) The contracting officer reviews the proposed action and promptly submits a report of the action together with the agency's recommendations and pertinent information including the position of the contractor and the employees to the U.S. Department of Labor Wage and Hour Division for review (See 29 CFR 4.6(b)(2)(ii)).
4) Within 30 days of receipt the Wage and Hour Division approves modifies or disapproves the action via transmittal to the agency contracting officer or notifies the contracting officer that additional time will be required to process

the request.
5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).
Information required by the Regulations must be submitted on SF-1444 or bond paper.
When preparing a conformance request the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember it is not the job title but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split combine or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."